

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2025CUWE052753: KYLA DE LEON vs SIOBHAN O'DONNELL
07/07/2026 in Department 41
Demurrer to First Amended Complaint

Kyla DeLeon v. Siobhan O'Donnell

2025CUWE052753

July 7, 2026; at 8:20 a.m.

Department 41

(L. Jones)

- Motion:**
1. Defendant Siobhan O'Donnell's Demurrer to Plaintiff's First Amended Complaint (*Opposed*)
 2. Defendant Siobhan O'Donnell's Motion to Strike Portions of Plaintiff's First Amended Complaint (*Opposed*)

Defendant Siobhan O'Donnell's Demurrer to Plaintiff's First Amended Complaint per Code of Civil Procedure section 430.10, subdivision (e) is SUSTAINED. Insufficient facts are stated to support the causes of action for intentional infliction of emotional distress (seventh cause of action) and violation of Business and Professions Code section 17200 (ninth cause of action). Leave to amend will only be allowed on the ninth cause of action. (*Goodman v. Kennedy* (1976) 18 Cal.3d. 335, 349; *Okun v. Sup.Ct. (Maple Properties)* (1981) 29 Cal.3d. 442, 460; and *Bounds v. Sup.Ct. (KMA Group)* (2014) 229 Cal.App.4th 468, 484.)

Defendant Siobhan O'Donnell's Motion to Strike Portions of the First Amended Complaint is GRANTED WITHOUT LEAVE TO AMEND per Code of Civil Procedure sections 435 et seq. There are insufficient facts stated to support a claim for punitive damages. Accordingly, the motion to strike will be granted without leave to amend, especially in light of the ruling on the demurrer.

Plaintiff to file an amended complaint within 20 days of this Court's order.

Notice of this Court's ruling to be given by counsel for Defendant.